



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 35537803

Date: JAN. 16, 2025

Appeal of California Service Center Decision

Form I-129, Petition for a Nonimmigrant Worker (Religious Worker – R-1)

The Petitioner, a religious organization, seeks to classify the Beneficiary as an R-1 nonimmigrant religious worker to perform services as a Buddhist nun. *See* Immigration and Nationality Act (the Act) Section 101(a)(15)(R), 8 U.S.C. § 1101(a)(15)(R). This nonimmigrant R-1 classification allows non-profit religious organizations, or their affiliates, to temporarily employ foreign nationals as ministers, in religious vocations, or in religious occupations in the United States.

The Director of the California Service Center denied the petition, concluding that the record did not establish that the Petitioner has been a member of a religious denomination having a bona fide non-profit religious organization in the United States for the two-year period immediately preceding the filing of the petition. 8 C.F.R. § 214.2(r)(1). The matter is now before us on appeal pursuant to 8 C.F.R. § 103.3.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter *de novo*. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon *de novo* review, we will dismiss the appeal.

I. LAW

Non-profit religious organizations may petition for foreign nationals to work in the United States for up to five years to perform religious work as ministers, in religious vocations, or in religious occupations. *See generally* section 101(a)(15)(R) of the Act; 8 C.F.R. § 214.2(r). The petitioning organization must establish, among other requirements, that the foreign national beneficiary has been a member of a religious denomination for at least the two-year period before the date the petition is filed. 8 C.F.R. § 214.2(r)(1).

The regulation at 8 C.F.R. § 214.2(r)(3) includes the following definitions:

Denominational membership means membership during at least the two-year period immediately preceding the filing date of the petition, in the same type of religious denomination as the United States religious organization where the alien will work.

Religious denomination means a religious group or community of believers that is governed or administered under a common type of ecclesiastical government and includes one or more of the following:

- (A) A recognized common creed or statement of faith shared among the denomination's members;
- (B) A common form of worship;
- (C) A common formal code of doctrine and discipline;
- (D) Common religious services and ceremonies;
- (E) Common established places of religious worship or religious congregations; or
- (F) Comparable indicia of a bona fide religious denomination.

II. BACKGROUND AND PROCEDURAL HISTORY

The instant petition was filed on February 29, 2016. The Petitioner is [REDACTED] a Buddhist temple that “practices and teaches the dharma expounded by Sakyamuni Buddha.” The petition and the accompanying R-1 Classification Supplement indicate that the Petitioner seeks to employ the Beneficiary as a Buddhist nun to “cultivate teachings of Sakyamuni Buddha.” The initial filing included “Employment Certificate” indicating that the Beneficiary “has been working as a religious volunteer worker at [REDACTED] since January 2013.” This “Employment Certificate” is executed by an individual named [REDACTED] who is purportedly “Chair Person” of the center. However, when U.S. Citizenship and Immigration Services (USCIS) conducted the overseas investigation in January 2019, the investigator reported that there was no sign of [REDACTED] at the address provided in the “Employment Certificate.” Also, the investigator was not able to reach [REDACTED] who was listed as the contact in the “Employment Certificate.”

The Director issued a notice of intent to deny (NOID) on April 27, 2020, based on this derogatory information and the Petitioner responded with another letter dated May 4, 2020, written by [REDACTED]. This letter provided at the address for [REDACTED] (also known as [REDACTED]) as [REDACTED] and claimed that the center was forced to close in June 2016 by the Chinese government. The letter also provided a new phone number for [REDACTED] however, USCIS still could not reach [REDACTED] using this new number.

The Director subsequently denied the petition on October 6, 2021, finding that the overseas investigation by USCIS failed to verify the information contained in the Beneficiary’s “Employment Certificate” and the Petitioner did not satisfactorily complete a pre-approval on-site inspection per 8 C.F.R. § 214.2(r)(16). The Petitioner appealed this denial claiming that USCIS did not use the correct telephone number to reach [REDACTED]. Despite the unresolved inconsistencies in the record, we remanded the matter because the Director did not sufficiently explain how an overseas investigation on the Beneficiary’s former employer constitutes an on-site inspection of the petitioning

organization per 8 C.F.R. § 214.2(r)(16) or how the Beneficiary's prior experience was relevant to adjudication of the R-1 nonimmigrant religious worker petition. The Director denied the petition again on July 15, 2024, this time on the issue of the Beneficiary's two-year denominational membership. Our review is limited to the appeal of the Director's 2024 decision.

III. ANALYSIS

The issue before us is whether the Petitioner provided independent and objective evidence to overcome the adverse credibility inference raised by the overseas investigation conducted by USCIS and establish that the Beneficiary has the denominational membership for the two-year period immediately preceding the filing of the petition in the same religious denomination that she seeks to work in the United States. The Petitioner claims on appeal that the 2024 denial is "nearly identical to its October 6, 2021 decision" and "ignored the voluminous evidence of [the Petitioner's] membership for well over the requisite two-years in the Buddhist faith, including her ordination, her tonsuring,¹ her many certificates." However, we find that the Petitioner has not sufficiently resolved discrepancies stemming from the overseas investigation or explained the inconsistencies in the record. *Matter of Ho*, 19 I&N Dec. 582, 591-92 (BIA 1988). Therefore, we conclude that the Petitioner did not meet its burden of proof in establishing the Beneficiary's two years of denominational membership.

In the R-1 Classification Supplement to Form I-129, Section 1, item 5c, the Petitioner provided the following summary of the Beneficiary's membership and qualification:

[The Beneficiary] has been an active member of the Buddhist faith for her entire life, she regularly attended Buddhist temples, classes, and became an active member of various Buddhist association. [The Beneficiary] has been living a monastic life which includes "Vinaya," the specific moral code for Buddhist nuns, they are constantly reminded that it is the spirit that counts. Since January of 2013, [the Beneficiary] has been working as a Religious Worker: Assisting, planning and coordinating Buddha Dharma-listening classes and buddhist sutra; organizing dharma discourses and dharma lectures; sharing the job of learning Buddhism with the public and provide counseling services; . . . and propagate[ing] in enthusiasm the Buddha dharma. On January 19, 2016, [the Beneficiary] took her vows and was tonsured as an Acolyte Buddhist Nun, which is in accordance with the Certificate of Buddhist Vows.

Although the Beneficiary appears to have been a long-term member of the Buddhist faith based on the Petitioner's claims here, a review of the record does not support such conclusion as discussed below.

The regulations require that the Beneficiary's denominational membership must be established during the two years immediately preceding the filing of the petition. As the petition was filed on February 29, 2016, the Petitioner must submit evidence of the Beneficiary's membership specifically from March 2014 to February 2016. The Petitioner submitted the Beneficiary's Dharma Session Listening Master Certificate from the [REDACTED] while she was residing in China. However, this certificate was issued in 2011 when the Beneficiary was approximately 15 years

¹ The Petitioner explained that tonsuring is a tradition of the shaving of the head of female monastics in Buddhism and traced back to the time of Buddha, symbolizing the complete-cut-off from secular life.

old.² Therefore, this master certificate obtained in 2011 does not demonstrate the Beneficiary's denominational membership during the specified period.

More contemporaneous evidence of the Beneficiary's activities and membership during the requisite period consist of the following: the "Employment Certificate" dated February 10, 2016, written by [redacted] claiming that the Beneficiary volunteered as a religious worker at [redacted] since January 2013; another letter dated May 4, 2020 from [redacted] discussing the Beneficiary's religious work with the [redacted] Congregation since January 2013, and the subsequent closing of the congregation (or [redacted] by the Chinese government in June 2016; the Beneficiary's own statements regarding her volunteer work at the [redacted] experience of religious persecution by the Chinese government, and her arrival to the United States in December 2015; and the Beneficiary's certificate of tonsure on January 19, 2016 issued by [redacted].³

However, such evidence regarding membership entirely consists of affidavits and personal statements without independent and objective documentary evidence showing the Beneficiary's membership and activities in the Buddhist faith as claimed in the R-1 supplement, such as attending Buddhist temples and classes, and being an active member of various Buddhist associations. A petitioner must support their assertions with relevant, probative, and credible evidence. *See Matter of Chawathe*, 25 I&N Dec. at 376. Therefore, the fact that the USCIS investigator was unable to locate or verify the operations of [redacted] in China or contact the purported chairperson of the center to confirm the Beneficiary's membership with [redacted] or her activities at this location as claimed in the petition is material to the issue of the denominational membership per 8 C.F.R. § 214.2(r)(1).

The Petitioner has not adequately resolved the inconsistencies discussed by the Director in the denial, such as why "Number 28" of [redacted] address does not exist at the claimed location as indicated by the "Employment Certificate"; why there is no public information regarding this center; or why the Petitioner did not provide information or supporting evidence to establish [redacted] operation or the Beneficiary's religious services at the claimed location. The Petitioner further raised doubts on the reliability of [redacted] statements when his May 2020 letter states that "my phony [sic] number is [redacted] without indicating whether this phone number is registered in China, in the United States, or another country, and USCIS was unable to contact him for verification.

On appeal, the Petitioner refers to [redacted] phone records in the record verifying that the telephone number provided in the May 2020 letter was indeed the correct phone number but has not provided corroborating evidence to show [redacted] operation, its activities, and the Beneficiary's membership with the center. The Petitioner also provides a photo of [redacted] Chinese resident card, issued by the Chinese government containing the exact address given in the May 2020 letter. However, this evidence does not corroborate the activities and existence of the

² The fine prints in the certificate indicate that obtaining this Dharma Session Listening Master Certificate allows an examinee "to teach the ten good characteristics and the four limitless state of mind, to guide people toward learning Buddhism."

³ The certificate of ordination issued on April 26, 2019, along with photos of the Beneficiary being granted the ordination in the record are outside the two-year period in question.

center, but merely confirms the residential address for the individual named [REDACTED]. The Petitioner also submits the U.S. Department of State's 2019 report on international religious freedom in China as well as news articles but there is no specific information about [REDACTED] or [REDACTED] other than general discussion of the restrictions imposed on Chinese nationals practicing Buddhism.

The evidence in the record does not sufficiently explain the unresolved inconsistencies or negative credibility inferences regarding the required membership during the two-year period. The Petitioner must resolve the discrepancies raised with independent, objective evidence pointing to where the truth lies. *Matter of Ho*, 19 I&N Dec. at 591-92. Unresolved material inconsistencies may lead us to reevaluate the reliability and sufficiency of other evidence submitted in support of the requested immigration benefit. *Id.* The Petitioner has not provided independent and corroborating evidence of the Beneficiary's activities or membership despite the claims that she volunteered at [REDACTED] [REDACTED] in China since 2013 until she received her certificate of tonsure in January 2016. The record also does not include any corroborating evidence that the Beneficiary was involved in various Buddhist associations or temples other than she obtained a master certificate back in 2011. Therefore, we conclude that the Petitioner did not establish that the Beneficiary has the requisite two-year membership immediately preceding the filing of the petition, according to 8 C.F.R. § 214.2(r)(1).

III. CONCLUSION

The Petitioner has not established, by a preponderance of the evidence, its eligibility to classify the Beneficiary as an R-1 nonimmigrant religious worker. It is the Petitioner's burden to establish eligibility for the immigration benefit sought. Here, that burden has not been met.

ORDER: The appeal is dismissed.